

F1.2 The reference-to-appropriation plane

Every borrowing sits somewhere on two separate scales: how much of the source it takes, and how much harm it does to the people it came from.

Spec

Row	Content
Essential question	When one maker uses another people's form, what decides whether it is a nod, a copy, a trade good or a taking?
Opening move	Prediction first (form 15). Three unlabelled images: a porcelain dish showing a French fable; ivory elephants carved trunk to tail along a tusk; a flask printed "Navajo". Prompt: "Who copied whom? Which one ended in a lawsuit?" Reveal: Chinese painters copied a French print for European buyers (Cleveland 1970.48). A carver in Ekibondo, then Belgian Congo, made the elephants for European and American buyers from an Asian composition (Cleveland 1929.342). A US retailer sold the flask, and the Navajo Nation sued (D.N.M. 1:12-cv-00195). Claim: borrowing is how design has always moved, so no use is wrong in itself. Counter-claim: some uses take what a community has not offered, and the harm lands on that community. Case: Diné, where both happened to one people (below).
Lab or main interactive	The plane. Horizontal: reference → quotation → adaptation → translation → appropriation. Vertical: harm to the source community, from none to severe. Learners drag each case onto the plane before and after its object story; the board keeps both positions, so movement is visible. No correct cell is stored.

Row	Content
Concept	About 550 words. (1) The two axes are independent: a bare name can do more harm than a full copy. (2) The five positions defined in plain words, each with one case. (3) Borrowing runs every way: Chinese, Indian and Congolese makers adapting forms for European buyers, not only Europe taking. (4) The tourist, souvenir and export arts strand: makers adapting a form to a buyer's idea of it. Nelson Graburn (1976) separated arts made for the makers' own society from arts "made for an external, dominant world", "sometimes called 'tourist' or 'airport' arts". Grand Tour views (Panini), netsuke as collectors' objects (Atlas GAP036) and Kamba and Makonde carving (STY178, STY177) are Atlas links. (5) Communities answer back: the Navajo Nation's trademark, the Maasai Intellectual Property Initiative's licensing plan (founded 2010), the Tlahuitoltepec press conference. Forward to F1.26 and R2.
Cases	Six object stories (form 3), each ending with the Historian's four questions. A. "Elephant Bridge" souvenir, Ekibondo, 1900–1925, unknown carver, ivory (Cleveland 1929.342). B. Charger after a French print, Chinese export, c. 1750 (Cleveland 1970.48). C. Kehar Singh, <i>Weaving and Spinning</i>, Punjab, c. 1860, Company school (Cleveland 1987.162). D. Diné: from the trading-post blanket to "Navajo" retail goods, blanket c. 1875–80 (Cleveland 1921.556); lawsuit 2012–2016. E. The Tlahuitoltepec blouse and Isabel Marant, Oaxaca and Paris, 2015. F. Panini, <i>Interior of the Pantheon, Rome</i>, 1747, a Grand Tour view (Cleveland 1974.39). Chapters: F1.6 (A), F1.7 (D, E), F1.8 (B), F1.9 (C), F1.11 (F). Directions: Europe takes (D, E); Asian and African makers adapt for European buyers (A, B, C); Europe sells itself to visitors (F).

Row	Content
Apply — maker	Sort all six on the plane. For each, write one line per question: how recognisable, credited or not, makers involved or benefiting, what the form means to them. Then place one source from your own concept and answer the same four.
Apply — briefer	Sort all six. Then flag the one you would stop if it arrived as a brief today. Write the condition that would let it go ahead (who you would ask, what they would get). The flag is your call; the unit does not score which case you pick.
Partner	Historian. Question: "Where would you put it, and what would you need to know to be sure?" It never rules on a case. It returns the plane, the four questions, and a test: <i>"Write one sentence the source community could check: what you took, from whom, and what they got. If you cannot write it, you do not yet know where this sits."</i>
Forms	15, 3
Consumption forms	Five-minute: the prediction and case D. Session: all six stories, the sort, the Historian. Reference: a printable card of the plane with the four questions and the test.
Media	Cleveland Open Access images (CC0) for A, B, C, D (blanket) and F; our own diagram of the plane; link-outs for the retail products, the court records and the Tlahuitoltepec statement.
Artifact fields	SRC
Threads	Attribution and Authority (credit, named and unnamed makers); Writing and Argument (the test sentence); Accessibility level 1 (the plane has a keyboard and list alternative; every image has alt text).

Row	Content
Closing contribution	One SRC line: "[Source] sits at [position], [harm level], because [answers to the four questions]; test sentence: [what I took, from whom, what they got]."
Claims sheet	Claims 1–20 below.

1. Responsibility block

- **Groupings and types this unit must reach:** GAP066 souvenir; GAP067 Grand Tour; NET054 porcelain trade; INS021 Canton Thirteen Factories; STY121 Company School; INS013 Navajo trading posts; COM097 Diné; COM124 Ayuujk; OBT040 huipil (as the nearest type row; see Nodes); MAT074 elephant ivory; PER466 Nelson Graburn.
- **Sub-regions and periods:** AF-CEN, 1900–1925 (colonial Congo); AS-CHN, 1700s; AS-SAS (Punjab), 1800s; AM-WST, 1860s–2016; AM-MES (Oaxaca), 2015; EU-WCE and Rome, 1740s.
- **World chapters reached with a case:** F1.6 Africa (A), F1.7 Americas (D, E), F1.8 East Asia (B), F1.9 South and Southeast Asia (C), F1.11 Europe and the Mediterranean (F). Five of nine.
- **Carried by the Atlas instead:** netsuke (GAP036), Kamba and Makonde carving (STY178, STY177), Poto-Poto School (SCH012), Namban art (GAP005), Chinoiserie and Japonisme (STY029, STY030), Maasai beadwork and the Maasai IP Initiative (COM062, PRA030), Māori taonga works and WAI 262 (OCC255), kente (PRA002, MKR003). Copying and counterfeit as such belong to F1.14; who commissions belongs to F1.17.

2. Protocol screen

- No human remains, sacred or secret material in any case. Diné sandpainting designs (COM097 is flagged "sacred") are excluded; only the museum's wearing blanket is shown.
- **Notice** on case D (Diné) and case E (Ayuujk, Santa María Tlahuitoltepec): the community's own name first, and a line saying the community has spoken publicly about this use.
- **Case E images:** do not reproduce the Tlahuitoltepec blouse design, or Marant's version of it, and do not draw it ourselves. Showing it again would repeat the use in question. Link out only.

- **Case D images:** no images of the retail products. Link to the court docket and news reports.
- **Case A content note:** ivory; the ivory trade in colonial Congo depended on the killing of elephants and forced portorage (MAT074 notes). The object was acquired in 1928 under Belgian rule.
- People are never described as goods. Graburn's terms "Fourth World" and "Cuna" are quoted and attributed; the community's name is Guna (COM127 Dule).

3. Claims

#	Claim	Confidence	Source opened	Depth
1	A Chinese porcelain factory adapted a French print of a La Fontaine fable to decorate a dish for the European market, c. 1750.	documented	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1970.48	full record
2	European forms such as mugs, ewers and candlesticks were unknown in China, "so models were sent to the Chinese potteries to be copied"; armorial porcelain "became the defining aspect" of the 18th-century export trade.	documented	https://www.metmuseum.org/essays/east-and-west-chinese-export-porcelain (Munger and Frelinghuysen, 2003)	full text

#	Claim	Confidence	Source opened	Depth
3	Kehar Singh painted <i>Weaving and Spinning</i> c. 1860 in Punjab, probably Amritsar or Lahore; inscriptions name him and the occupations shown.	documented	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1987.162	full record
4	East India Company men collected picture books of Indian occupations made by "a new class of commercial Indian artists".	documented (holder's framing)	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1992.142	full record
5	The Ekibondo carving (1900–1925) was made for European and American buyers; the museum calls it "a Congolese take on an Asian composition of elephants".	documented	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1929.342	full record
6	The same record says the carving "did not draw from local aesthetics". This is the holder's judgement. The carver's own view is not recorded.	interpretive	as 5	full record

#	Claim	Confidence	Source opened	Depth
7	Paul Travis acquired the carving in Ekibondo in 1928 for the Gilpin Players of Karamu House, who gave it to Cleveland in 1929.	documented	as 5	full record
8	Graburn (1976) separated arts made for the makers' own "part-society" from arts "made for an external, dominant world", "sometimes called 'tourist' or 'airport' arts".	documented	https://archive.org/stream/bub_gb_wzJ-uRsyfxgC/bub_gb_wzJ-uRsyfxgC_djvu.txt (Introduction, "Arts of the Fourth World")	full text
9	Graburn also named "reintegrated arts", new syntheses such as mola blouses made after imported cloth, needles and scissors arrived.	documented	as 8	full text

#	Claim	Confidence	Source opened	Depth
10	A Diné woman wove the Cleveland wearing blanket c. 1875–80 from handspun, Germantown and bayeta wool; the museum says weavers of the period shifted towards goods for non-Native collectors.	documented	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1921.556	full record
11	The Navajo Nation sued Urban Outfitters in February 2012 in the US District Court for New Mexico.	documented	https://indianz.com/News/2016/11/17/navajo-nation-settles-dispute-over-sale.asp ; https://www.courtlistener.com/docket/4312930/idb/navajo-nation-the-v-urban-outfitters-inc/ (docket page not opened; search listing only)	news full text
12	Items included a "Navajo hipster panty" and a "Navajo print fabric-wrapped flask"; items were later relabelled "printed".	documented (secondary)	https://www.phillymag.com/business/2016/11/23/urban-outfitters-navajo-nation-settlement-lawsuit/	news full text
13	The Nation's NAVAJO mark has been registered since 1943 and used since at least 1941.	documented (party's statement)	https://www.kellerrohrback.com/news/navajo-nation-urban-outfitters-inc-announce-settlement-agreement	press release

#	Claim	Confidence	Source opened	Depth
14	In May 2016 Judge Bruce Black dismissed two dilution counts: the mark was "more of a niche" than a household name.	documented	https://www.cbc.ca/lite/story/1.3591159	news full text
15	On 19 September 2016 the court rejected the defences that "Navajo" had become generic or been abandoned.	documented	https://narf.org/nill/bulletins/federal/documents/navajo_nation_v_urban_outfitters_2016.html	full text of opinion
16	The November 2016 settlement was confidential and included a supply and licence agreement for jewellery. President Russell Begaye said: "We expect that any company considering the use of the Navajo name, or our designs or motifs, will ask us for our permission."	documented	as 13; as 11	press release; news

#	Claim	Confidence	Source opened	Depth
17	In June 2015 the Santa María Tlahuitoltepec community said at a press conference that Marant's Étoile spring-summer 2015 collection "contains the graphical elements specific to the Tlahuitoltepec blouse".	documented as reported; the community's own text not opened	https://remezcla.com/culture/oaxacas-mixe-community-fights-isabel-marant/ ; https://fashionunited.uk/news/fashion/indigenous-tribe-accuses-isabel-marant-of-plagiarism/2015062216817	news full text
18	In a Paris suit brought by Antik Batik, Marant stated she "does not claim to be the author of this tunic and these designs". In December 2015 the court ruled Antik Batik held no rights; Marant's lawyer said it upheld the village origin.	probable (court's words reached only through a party's lawyer)	https://fashionunited.uk/news/business/isabel-marant-freed-of-plagiarism-accusations/2015120818656	news full text
19	Panini's views of Rome "were popular with foreigners who visited the city on their Grand Tours".	documented	https://openaccess-api.clevelandart.org/api/artworks/?accession_number=1974.39	full record

#	Claim	Confidence	Source opened	Depth
20	Unit framing: the plane, its five positions and its harm scale are this program's teaching device, not a scholarly standard. Harm is for the source community to name.	interpretive	—	—

Supporting, used in the Concept: the Maasai Intellectual Property Initiative began in 2010 after Maasai leaders approached Light Years IP in 2009. It reports "over 1,000 companies" using the Maasai name and has a board of 12 elected members for Maasai districts in Kenya and Tanzania (the Initiative's own statement; <https://maasaiintellectualpropertyinitiative.org/faqs>, full text). The 1,000 figure is the Initiative's own claim, and we have not verified it.

4. Nodes

- **Case A:** GAP066, MAT074, PER466. COM048 Mangbetu only if a source ties Ekibondo to Mangbetu carvers; the Cleveland record does not.
- **Case B:** NET054, INS021, PLC191, PLC192, POL169, TEC035, TEC038, MAT021, STY029.
- **Case C:** STY121, INS030, POL200; links to CL-182 (Bengal cloth).
- **Case D:** COM097, PRA035, TEC131, INS013, OCC141, OCC253; WS-054; CL-171, CL-172.
- **Case E:** COM124, OBT040.
- **Case F:** GAP067, GAP066, CIV073.
- **Claims 8–9:** PER466; COM127.
- **Proposed new canon rows:** Navajo Nation v. Urban Outfitters (event, 2012–2016); Tlahuitoltepec blouse case (event, 2015); Santa María Tlahuitoltepec (place); Maasai Intellectual Property Initiative (institution, 2010); Kehar Singh (person); Giovanni Paolo Panini (person); Ekibondo (place); Karamu House and the Gilpin Players (institution); Chinese export porcelain (style or object type: NET054 covers only the trade); Ayuujk blouse (object type, if OBT040 huipil is the wrong term for the garment; check with a community source).

5. Candidate open objects

Object	Holder, accession	Date	Licence as stated	1970 status	Record
"Elephant Bridge" souvenir, unknown maker, Ekibondo	Cleveland Museum of Art, 1929.342	1900–1925	CC0	n/a (made for sale; acquired 1928 in the Belgian Congo: flag to F1.24)	https://clevelandart.org/art/1929.342
Charger, Chinese export, after a French print	Cleveland Museum of Art, 1970.48	c. 1750	CC0	n/a	https://clevelandart.org/art/1970.48
Kehar Singh, <i>Weaving and Spinning</i>	Cleveland Museum of Art, 1987.162	c. 1860	CC0	n/a	https://clevelandart.org/art/1987.162
Wearing blanket, Diné woman artist (WS-054)	Cleveland Museum of Art, 1921.556	c. 1875–80	CC0	n/a	https://clevelandart.org/art/1921.556
Giovanni Paolo Panini, <i>Interior of the Pantheon, Rome</i>	Cleveland Museum of Art, 1974.39	1747	CC0	n/a	https://clevelandart.org/art/1974.39

No open object for case E: link out to the community's statement once found, not to images. No object for the retail products in case D.

6. People and credit

- **Named:** Kehar Singh (case C); Giovanni Paolo Panini (F). For case D, President Russell Begaye speaks for the Navajo Nation. Judge Bruce D. Black. Isabel Marant. Nelson Graburn (1936–2025, per PER466). Paul Travis and the Gilpin Players (case A).
- **Unnamed:** the Ekibondo carver; the Chinese factory's painters and potters (case B); the Diné woman who wove the blanket; the Tlahuitoltepec embroiderers.
- **What the credit leaves out:** in A, the carver is unnamed and the museum's "did not draw from local aesthetics" speaks for him. In B, the record names La Fontaine but no Chinese maker. In C, Singh is named but the spinners and weavers he painted are not. D's trademark protects the Nation's name but not the individual weaver. In E, the Paris court case was between two French firms; the community was not a party. In F, Panini is named, but the Pantheon's builders and the people shown inside it are not.

7. Visual plan (zero cost)

- **Form 15 (prediction):** A and B from Cleveland CC0. The flask stays a text card (no image) with a link out.
- **Form 3 (object stories):** A, B, C, F and the blanket in D from Cleveland CC0. For E, text and a link out only (see Protocol).
- **The plane:** our own diagram, SVG, with a list view for screen readers.
- **Maps:** our own locator map of the six places. No generated images of objects, people or places.

8. Success criteria

1. The learner places all six cases and gives at least two of the four answers for each, each tied to a named source.
2. The learner names one case where the horizontal position and the harm level diverge, and cites the evidence.
3. The learner's SRC line carries a position, a harm level, the four answers and a test sentence for one of their own sources.

9. Readings and risks

- **Historian pre-read (pack v2):** Graburn's Introduction in full (archive.org scan). Also the Met essay by Munger and Frelinghuysen, the 19 September 2016 opinion (NILL) and the Keller Rohrback release. Find the Tlahuitoltepec community's own 2015 statement in Spanish, from the municipal account or the assembly, and read it before claim 17 goes live.
- **Hold until a reader clears:** (a) the Briefer "stop" flag: check that the wording never presents a learner's flag as the program's verdict on a living community's dispute. (b) Case A's content note on ivory and colonial Congo. (c) Case E: whether the community wants the case taught, and under what name. Ask through F1.26's protocol. (d) The "600-year-old" age reported for the Tlahuitoltepec design is unverified; leave it out.

10. Fact-check list

- Cleveland records 1929.342, 1970.48, 1987.162, 1921.556, 1974.39: licence CC0, dates, credit lines, descriptions quoted.
- Graburn quotations against the printed 1976 University of California Press text (the scan is a Google Books digitisation); Graburn's death year (2025) against an obituary.
- Munger and Frelinghuysen essay: authorship, October 2003 date, quotations.

- Navajo Nation v. Urban Outfitters: case number 1:12-cv-00195; filing date (February 2012); May 2016 dismissal (read the order, not only CBC); 19 September 2016 opinion; settlement date (release dated 17–21 November 2016); Begaye quotation; 1943 registration (check the USPTO record).
- Russell Begaye's title and term (Navajo Nation President 2015–2019): verify.
- Tlahuitoltepec: the community's statement in its own words, the date, and the speaker. The Ayuujk endonym (COM124) and the garment's own name (not verified). The Paris ruling's date and court (reported 8 December 2015), from a primary report if possible.
- Maasai IP Initiative: founding year, board structure, "over 1,000 companies" (the Initiative's own claim).
- Canon rows used: GAP066, GAP067, PER466, COM097, COM124, INS013, STY121, NET054, MAT074 (R1/R2 status per register).
- No UNESCO claims are made in this unit.